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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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ARB-407-2024

Date of Decision: 07.01.2025

Ajay Singh Contractor

...Applicant

Versus

State of Haryana and others

...Respondents

CORAM: HON'BLE MR. JUSTICE JAGMOHAN BANSAL

Present: - Ms. Seenu Ravesh, Advocate
for Mr. Vivek Khatri, Advocate for the applicant
Mr. Saurabh Mohunta, Deputy Advocate General, Haryana

JAGMOHAN BANSAL, J. (Oral)

1. Through instant application under Section 11(6) of the Arbitration and Conciliation Act, 1996 (for short '**1996 Act**'), the applicant is seeking appointment of an Arbitrator.

2. Pursuant to tender, the applicant was allotted work by the respondent vide allotment letter dated 22.11.2021 (Annexure P-1). Thereafter, a written agreement was executed between the parties. A dispute erupted between the parties. There is an arbitration clause in Conditions of Contract. The allotment of work, arbitration clause in the Conditions of Contract and service of notice under Section 21 of 1996 Act is not disputed.

3. Learned State counsel submits that he leaves it to this Court to make appointment of an independent Arbitrator.

4. Conditions to invoke power conferred by Section 11(6) of 1996 Act stand satisfied, thus, I hereby appoint a sole Arbitrator to adjudicate the dispute between the parties.

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5. Ms. Monika Jangra, Advocate residing at House No.1984, Sector 15, Panchkula, Mobile No.9050920816 is hereby appointed as a Sole Arbitrator to adjudicate the dispute between the parties, subject to compliance of statutory requirements. The learned Arbitrator is requested to comply with mandate of Section 12 of 1996 Act before proceeding further.

6. Parties are directed to appear before the learned Arbitrator on date, time and place to be fixed by the Arbitrator at her convenience.

7. The Arbitrator shall be paid fee in accordance with the Fourth Schedule of the Act, as amended.

8. The Arbitrator is requested to complete the proceedings as per time limit specified under Section 29-A of the 1996 Act.

9. Needless to mention, parties would be at liberty to raise all the claims/defences/counter claims/pleas before the Arbitrator. Any observation made hereinabove will not be binding on the learned Arbitrator.

10. A request letter along with copy of this order be sent to Ms. Monika Jangra, Advocate.

(JAGMOHAN BANSAL)
JUDGE

07.01.2025*Mohit Kumar*

Whether speaking/reasoned	Yes/No
Whether reportable	Yes/No